KOR STRUCTURAL · CONTRACT REVIEW · COMPANION TO THE 24 AUGUST REVIEW

Matthews West — Insurance check and next steps

The certificate meets both limits. It cannot meet clause 10.3 as drafted, which makes 10.3 the clause to mark up, not the certificate to change. The markup belongs with Jim and the broker; the signature stays with Rory.

Limits — met | Subrogation — not met | Entity name — fix | Renewal — 21 Nov

CERTIFICATE 2025-00142 (BFL CANADA, 8 OCTOBER 2026) AGAINST SECTION 10 OF THE AGREEMENT

10.1.1 **General liability $5M each occurrence and aggregate, with cross liability**	$5,000,000 per occurrence and $5,000,000 products and completed operations aggregate; cross liability, severability and blanket contractual liability included	Met
10.1.1 **Owner and its officers, directors, employees and agents as additional named insureds**	Oceanfront Squamish Developments LP, by its GP MSSH Oceanfront GP Inc., added to the general liability policy only, for KOR's operations only. No individuals named	Partly
10.1.1 **Policy primary and without right of contribution**	Not stated on the certificate	Not shown
10.1.2 **Automobile liability $2,000,000, each vehicle used, "if any"**	Non-owned automobile $5,000,000 under the general liability policy; no owned-vehicle policy. Starlight deleted this clause outright.	Not shown
10.1.3 **Professional liability $2M each occurrence and aggregate**	$2,000,000 each claim and $2,000,000 aggregate, claims made	Met
10.1 **Claims-made cover kept three years after completion**	Both policies run 21 Nov 2025 to 21 Nov 2026. An obligation to keep renewing, not something a certificate can show.	Not shown
10.1.4 **Workers' Compensation per Applicable Laws**	Not on a certificate of insurance; a WorkSafeBC clearance letter is the usual evidence	Not shown
10.3 **Waiver of subrogation and Owner as additional insured on all policies**	No waiver of subrogation anywhere on the certificate; additional insured on the general liability policy only. E&O carriers do not add additional insureds. Starlight's executed wording limits both to the general liability policy.	Not met

TWO FACTS THE CERTIFICATE ADDS

- **The counterparty's legal name is now on paper.** The certificate names **Oceanfront Squamish Developments Limited Partnership, by its general partner MSSH Oceanfront GP Inc.** The agreement's preamble still reads "[Oceanfront Squamish ("Owner")", a stray bracket and no legal entity. That line should carry the name the certificate carries.
- **Both policies expire 21 November 2026**, about five weeks out. A renewal certificate will be owed to Matthews almost as soon as the agreement is signed.

WHO DOES WHAT NEXT

THE BROKER · CLAUSE 10

BFL Canada, Jeff McLellan

Ask in writing which of 10.1.1 to 10.3 they can certify: officers and agents as additional insureds, primary and non-contributory, a subrogation waiver, and whether professional liability will carry either. What they cannot certify is what gets marked up.

JIM · CAP, IP, INDEMNITY

The Starlight wording, 31180-01

Liability capped at the lesser of two times the Price and $500,000 (cl 8.4); KOR reserves IP and the Owner takes a licence for this project; indemnity carved out for the Owner's own errors; subrogation limited to general liability. Trail in 01 General › Proposals & Contracts.

RORY · THE SIGNATURE

Three decisions, then reply to Carly

Whether counsel reviews the final redline (the cap is the clause worth real money); the entity name in the preamble; and the reply date. No marked-up agreement has been produced yet. The 24 August review is the position to mark up from.

Prepared 14 October 2026 for Rory Beirne and Daler Singh · Sources: Certificate of Insurance 2025-00142 (BFL Canada, 8 Oct 2026); PSA as of 22 July 2026, s.10; KOR review of 24 Aug 2026 · Read as text; every clause cited was read in the document.